

**2018 P L C (C.S.) Note 83**

**[Lahore High Court]**

**Before Ayesha A. Malik and Jawad Hassan, JJ**

**GUL AFSHAN**

**Versus**

**GOVERNMENT OF THE PUNJAB and 2 others**

I.C.A. No.122493 of 2017, decided on 18th December, 2017.

**Civil service---**

---Transfer of employee---Scope---Employee filed constitutional petition wherein she sought direction for her posting near her residence which was dismissed---Validity---Employee had herself selected the school where she was posted---Employee at such belated stage could not be allowed to re-choice the posting of her choice---No illegality or perversity had been pointed out in the impugned order passed by Single Judge---Intra-Court appeal was dismissed in limine. [paras. 4 & 5 of the judgment]

Mian Muhammad Javaid for Appellant.

**ORDER**

Through the instant Appeal, filed under Section 3 of the Law Reforms Ordinance, 1972, the Appellant has challenged the validity of order dated 27.11.2017 passed by the learned Single Judge in W.P. No.111531/2017 who dismissed the petition filed by the Appellant.

2. Learned counsel for the Appellant inter alia submitted that the impugned order is against the law and facts; that the learned Single Judge has failed to appreciate the actual facts of the case; that the Appellant has been technically knocked out by the learned Single Judge which is clear violation of Article 10-A of the Constitution of the Islamic Republic of Pakistan, 1973.

3. We have heard the arguments of the learned counsel for the Appellant and gone through the record.

4. The main grievance of the Appellant is that the Respondent No.1 may be directed to make the posting of the Appellant near to her residence. Allegedly, the Appellant contacted the Respondents for the said purpose time and against but her grievance could not be redressed. Ultimately, she filed writ petition before this Court in which a direction was issued to the Respondent No.1 to look into the matter whereupon the Respondent No.1 passed the order dated 20.10.2017. The bare reading of the said order reveals that the prescribed proforma, which was to be filled by the Appellant, clearly mentioned that the candidate must enter the serial number as per advertisement in a descending order. None else but the Appellant herself selected the station/school at serial number 2 as per advertisement which was Government Girls Primarily School Manak, Lahore and therefore, she was posted accordingly. Now at

belated stage she cannot be allowed to re-choice the posting at her own whims and wishes. As such, the learned Single Judge has rightly observed that not only that an opportunity was afforded to the Appellant to appear in person and was heard in respect of her case but also that the entire record was seen by the Respondent No.1. According to the conclusion drawn by the said Respondent, the allocation of the school to the Appellant is entirely on the basis of her merit and the serial number as per the advertisement which was entered by the Appellant herself in a descending order.

5. In view of above, we see no illegality or perversity in the impugned order which has been passed by the learned Single Judge in consonance with the spirit of law, as such does not warrant any interference by us. Consequently, the instant Appeal is devoid of any merit and is accordingly dismissed in limine.

ZC/G-1/L Appeal dismissed.